

ELIZABETH II



1981 CHAPTER xxvii

An Act to confer powers on the Northumbrian Water Authority for the performance of their functions under the Water Act 1973; to authorise the sale of electricity generated at Kielder Water; to make provision with respect to exceptions from licensing control under the Water Resources Act 1963; to apply provisions of the Third Schedule to the Water Act 1945 to the water undertaking of the Authority; to extend section 129 of the Town and Country Planning Act 1971 in relation to the sewerage and sewage disposal functions of the Authority; and for other purposes. [27th July 1981]

WHEREAS—

(1) The Northumbrian Water Authority (in this Act referred to as “the Authority”) were, in pursuance of the Water Act 1973, constituted as the authority responsible for water conserva- 1973 c. 37.
tion, supply of water, public sewerage and sewage disposal, land drainage, prevention of pollution, water recreation and the management and improvement of salmon, trout and freshwater fisheries in an area comprising the county of Tyne and Wear, the greater part of the counties of Cleveland, Durham and Northumberland and parts of the counties of Cumbria and North Yorkshire:

S.I. 1974/883.
1963 c. 38.

(2) In pursuance of the Northumbrian Water Authority (Kielder Water) Order 1974 made under the Water Resources Act 1963 and other enactments the Authority have constructed Kielder Water, including works authorised by that Order for the generation of electricity, and it is expedient that the Authority should be empowered to use the water power available at Kielder Water for the generation of electricity for supply to the North Eastern Electricity Board in agreement with that board and the Central Electricity Generating Board:

(3) It is expedient that provision be made to relieve persons who intend to take small quantities of water from sources of supply in the Authority's area from licensing control under Part IV of the Water Resources Act 1963, to secure that such persons have protected rights under that Act in respect of abstraction so excepted from control, to provide for the registration of such rights of abstraction and other such rights excepted by or under that Act and to make supplementary provision with respect to exceptions from licensing control by orders under section 25 of that Act:

1945 c. 42.

(4) It is expedient to make uniform provision with respect to the application to the water undertaking of the Authority of provisions of the Third Schedule to the Water Act 1945 which now apply to all or the greater part of that undertaking, subject to various modifications, by virtue of various existing statutory provisions, and to extend to the whole of the said water undertaking, subject to amendments, certain provisions now applicable to part only of the undertaking:

1971 c. 78.

(5) Under the Town and Country Planning Act 1971 the Authority are statutory undertakers in respect of their water supply functions but not in respect of their sewerage and sewage disposal functions and it is expedient to extend the provisions of section 129 of that Act, authorising the use and development of land held for open space, to facilitate the carrying out of works required for sewerage or sewage disposal:

(6) It is expedient that the other provisions in this Act should be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Northumbrian Water Authority Act 1981.

2.—(1) In this Act—

Interpretation.

“ the Act of 1963 ” means the Water Resources Act 1963;

1963 c. 38.

“ the Authority ” means the Northumbrian Water Authority.

(2) In sections 4 to 6 of this Act expressions defined in section 135 of the Act of 1963 have the same meanings.

Kielder Water: hydro-electric works

3.—(1) Notwithstanding anything in section 23 of the Electric Lighting Act 1909 or in any other enactment prohibiting or restricting supply of electricity, the Authority may, by agreement with the North Eastern Electricity Board and the Central Electricity Generating Board, supply to them or either of them, at such price and on such terms and conditions as may be so agreed, electricity generated by means of a generating station constructed by the Authority under article 4(3) of the Northumbrian Water Authority (Kielder Water) Order 1974 within the limits of deviation of the dam forming Kielder Water (Work No. 1 authorised by that Order).

Supply of electricity.

1909 c. 34.

S.I. 1974/883.

(2) Section 11 of the Electricity (Supply) Act 1919 (restriction on provision of generating stations) shall not apply to or in respect of any such generating station as is mentioned in subsection (1) above, and notwithstanding anything in article 4(3) of the said Order of 1974 works authorised by that article for generating and transforming electricity may be provided or used for the purposes mentioned in subsection (1) above.

1919 c. 100.

(3) Such of the works used for generating, transforming and supplying electricity under subsection (1) above as are works of the Authority shall for all purposes continue to form part of, and be occupied for the purposes of, the works provided under the said Order of 1974 in performance of the functions of the Authority under the Act of 1963.

Water Resources Act 1963: exceptions from licensing control

4.—(1) The Secretary of State may, on application made by the Authority, make an order under this section excepting from the restriction imposed by section 23(1) of the Act of 1963 (licensing of abstraction of water from sources of supply) the abstraction of water at any place within the Authority's area on the grounds that the abstraction is of such quantity or at such rate that it is immaterial for the purposes of control of abstraction under Part IV of that Act.

Exception of small abstractions from licensing control.

(2) An order under this section may be made in respect of abstractions—

- (a) of any quantity or at any rate less than the quantity in any year, or, as the case may be, rate per day or rate per hour or both such rates, specified in the order, or of such quantity and at any such rate so specified; and
- (b) from any or all sources of supply within the Authority's area (whether inland waters or underground strata), from any class of such sources specified in the order or from any part or parts of any such sources.

(3) Before making application for an order under this section the Authority shall submit a draft of the order to the Secretary of State.

(4) Part I of Schedule 7 to the Act of 1963 shall apply to applications for orders under this section and shall have effect in relation to any such application as if—

- (a) any reference to a draft statement were a reference to the draft order, and any reference to the approval of a statement were a reference to the making of an order;
- (b) any reference to an inland water to which the draft statement relates were a reference to any sources of supply to which the draft order relates;
- (c) in paragraph 4(b) for the words "from any such inland water" there were substituted the words "in the authority's area"; and
- (d) paragraph 1, paragraph 4(c), (f) and (g) and, in paragraph 6, the words "not exceeding 10 pence" were omitted.

(5) On the coming into operation of an order under this section—

- (a) the restriction imposed by subsection (1) of section 23 of the Act of 1963, and, in the case of any underground strata, the restriction imposed by subsection (2) of that section, shall cease to apply to any abstraction to which the order relates; and
- (b) any licence granted under the Act of 1963 which is for the time being in force shall cease to have effect so far as it authorises any such abstraction and no other abstraction.

(6) For the purposes specified in section 26 of the Act of 1963 (protected rights of abstraction), a person who is in a position to abstract water in such circumstances that, by virtue of an order under this section, the restriction imposed by section 23(1) of the Act of 1963 does not apply to that abstraction shall be taken to have a right to abstract water to the extent that the abstraction is excepted by the order.

(7) An order made under this section may be varied or revoked by a subsequent order, and any such order may contain such incidental and supplementary provisions as the Secretary of State considers necessary or expedient.

5.—(1) A person who is in a position to abstract water in the Registration area of the Authority in such circumstances that, by virtue of any of the provisions mentioned in subsection (2) below, that abstraction is or would be excepted from the restriction imposed by section 23(1) of the Act of 1963 (licensing of abstraction of water from sources of supply) may apply to the Authority for registration of particulars of that excepted abstraction so that due account may be taken of the abstraction in the control of abstraction under Part IV of that Act.

(2) The provisions referred to in subsection (1) above are the following:—

- (a) section 24(2) of the Act of 1963 (abstraction from an inland water by an occupier of contiguous land for use for household or certain agricultural purposes);
- (b) section 24(3) of the Act of 1963 (abstraction from underground strata for use for household purposes); and
- (c) an order under section 4 (Exception of small abstractions from licensing control) of this Act.

(3) If an application for registration under this section of an excepted abstraction states or adequately describes—

- (a) the point of abstraction to which the application relates;
- (b) the address of the premises at which the water abstracted is or would be used; and
- (c) the provision by virtue of which the abstraction is or would be excepted from restriction or the circumstances in which such exception is claimed;

and the Authority are satisfied that the application discloses a right to abstract water which is excepted from restriction, they shall enter those particulars of the abstraction in a register kept under this section.

(4) The register kept by the Authority under this section shall be available for inspection by the public at all reasonable hours.

6. An application made by the Authority for an order under section 25 of the Act of 1963 (exception of sources of supply for which licensing control is not needed) or for an order under section 4 (Exception of small abstractions from licensing control) of this Act in respect of abstraction from any inland water or underground strata may include, as an inland water or underground strata as may be specified in the application, any one or more springs by which water flows from underground strata; and any such order may provide accordingly.

Water supply

Application of Third Schedule to Water Act 1945 and other provisions.
1945 c. 42.

7.—(1) The provisions of the Third Schedule to the Water Act 1945 (except sections 2 and 7 and Part XV), whether or not applied by or under any other enactment, shall apply to the water undertaking of the Authority subject to the modifications specified in Part I of Schedule 1 to this Act and, subject as aforesaid, the said provisions are hereby incorporated in this Act.

1973 c. 37.

(2) The modifications of provisions of the said Third Schedule specified in Part I of Schedule 1 to this Act have effect in place of modifications of any of those provisions specified in any statutory instrument made under the Water Act 1973 or the Water Acts 1945 and 1948, or in any local Act, by which the said Third Schedule, or any provisions thereof, are applied to any part of the water undertaking of the Authority, not being provisions applied for the purposes only of a statutory instrument made under the Water Acts 1945 and 1948 or a local Act.

(3) Nothing in this section shall affect the application or modification of provisions of the said Third Schedule by section 69 (3) of, and Schedule 9 to, the Act of 1963.

(4) The provisions of Part II of Schedule 1 to this Act, which reproduce with amendments provisions applicable to part of the water undertaking of the Authority, shall have effect in relation to the supply of water by the Authority alone throughout their area.

Miscellaneous

Use of open space for sewerage functions.
1971 c. 78.

8.—(1) Section 129 of the Town and Country Planning Act 1971 (use and development of common land, open space or allotments) shall have effect as if the reference therein to statutory undertakers included the Authority exercising their statutory functions with respect to sewerage and sewage disposal.

(2) The said section 129 as having effect in accordance with subsection (1) above shall apply to the use, at any time after the commencement of this Act, of land—

- (a) compulsorily acquired by the Authority before or after that commencement; and
- (b) in accordance with a planning permission granted before or after that commencement.

Power to carry out trial borings, etc.

9.—(1) The Secretary of State may, on application made by the Authority, authorise them—

- (a) to place and leave on or in any land any apparatus for use in connection with any survey of that or any other land (whether from the air or on the ground) and to remove such apparatus; and

- (b) to search and bore on or in any land for the purpose of ascertaining the nature of the subsoil or the presence of water therein or the quantity or quality of such water.

(2) The Authority shall give notice of an application under this section to the owner and occupier of the land to which it relates and to the relevant undertakers, namely, the British Gas Corporation, the British Railways Board, the Central Electricity Generating Board and the North Eastern Electricity Board.

(3) Before giving authority under this section with respect to any land the Secretary of State shall consider any representations made to him by the owner or the occupier of the land within 14 days after the receipt of notice given under subsection (2) above and, unless all representations so made are disposed of by agreement between the Authority and the owner or occupier, shall either—

- (a) cause a local inquiry to be held; or
(b) afford to the owner or occupier and to the Authority an opportunity of appearing before and being heard by a person appointed by the Secretary of State for the purpose.

(4) For the purposes of this section, where the surface of any land (whether above or below the surface of any adjoining land) has been raised by the deposit of waste or other materials, any material lying below the surface as so raised shall be deemed to be part of the subsoil of that land.

(5) In their application to the Authority—

- (a) Section 111(1)(b) of the Act of 1963 shall have effect as if the power thereby conferred to enter upon and survey land included a power to exercise the powers conferred by subsection (1) above; and
(b) Section 112 of the Act of 1963 (supplementary provisions concerning entry and inspection) shall have effect as if references therein to section 111 of that Act were references to that section as extended by paragraph (a) above.

(6) Section 112 of the Land Drainage Act 1976 (protection of 1976 c. 70. nationalised or public utility undertakings) shall have effect in relation to the exercise by the Authority of the powers of this section as it has effect in relation to the exercise of powers conferred by or under that Act.

10.—(1) (a) Every undertaking given to the Authority by the Undertakings owner of a legal estate in land (in this section referred to as and agree-
“the owner”) and every agreement made between the Authority ments binding
and the owner, being an undertaking or agreement— successive
owners.

- (i) given or made in connection with the land; and

(ii) expressed to be given or made in pursuance of this section; and

(iii) defining that land as land the legal estate in which at the date of execution is vested in the owner;

shall be binding (without any limit of time) upon the owner and all persons deriving title by, through or under him.

1975 c. 76.

(b) The proper officer of the district council in whose area the land is situate shall, on receipt of a copy of the undertaking or agreement cause it to be registered in the register of local land charges in such manner as is prescribed by rules made under section 14 of the Local Land Charges Act 1975 as if the undertaking or agreement related to a restriction on the user or mode of user of land or buildings enforceable by a local authority under a covenant or agreement made with them.

(2) Without prejudice to the generality of subsection (1) above, it is hereby declared that an undertaking or agreement made binding by that subsection may consist of or include provision—

(a) for covenants by the owner to carry out any works or do any thing on or in relation to the land in question (including the making of any payment of a sum or sums of money);

(b) whereby the owner for valuable consideration agrees not to exercise a right conferred by any enactment.

(3) Any person against whom such an undertaking or agreement is enforceable shall be entitled to require a copy of it from the Authority.

Photographic
copies.

1972 c. 70.

11. Section 229 of the Local Government Act 1972 (microfilm and other photographic copies of documents) shall, with the necessary modifications, apply to the Authority as if they were a local authority within the meaning of that Act.

Power to
obtain
particulars
of persons
interested in
land.

12.—(1) Where, with a view to performing a function conferred on them by or under any enactment, the Authority consider that they ought to have information connected with any land, the Authority may serve on one or more of the following persons, namely:—

(a) the occupier of the land;

(b) any person who has an interest in the land either as freeholder, mortgagee or lessee or who directly or indirectly receives rent for the land; and

(c) any person who, in pursuance of an agreement between himself and a person interested in the land, is authorised to manage the land or to arrange for the letting of it;

a notice specifying the land and the function and the enactment by or under which the function is conferred and requiring the

recipient of the notice to furnish to the Authority, within a period specified in the notice (which shall not be less than 14 days beginning with the day on which the notice is served), the nature of his interest in the land and the name and address of each person whom the recipient of the notice believes is the occupier of the land and of each person whom he believes is, as respects the land, such a person as is mentioned in paragraphs (b) and (c) above.

(2) A person who—

- (a) fails, without reasonable excuse, to comply with the requirements of a notice served on him under subsection (1) above; or
- (b) in furnishing any information in compliance with such a notice makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular;

shall be guilty of an offence and liable on summary conviction to a fine not exceeding £200.

13. Section 265 of the Public Health Act 1875 (protection from personal liability of members and officers of certain authorities when acting under the direction of the authority) shall apply to the Authority as if—

Protection of members and officers from personal liability.

- (a) references to a local authority were references to the Authority or to a committee of the Authority; 1875 c. 55.
- (b) for the words “ for the purpose of executing this Act ” there were substituted the words “ for the purpose of carrying out any of the functions of the Authority except functions under the Control of Pollution Act 1974 ”; and 1974 c. 40.
- (c) for the words “ out of the fund or rate applicable by such authority to the general purposes of this Act ” there were substituted the words “ by the Authority ”.

14.—(1) The Secretary of State may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Section 250 (2) to (5) of the Local Government Act 1972 shall apply to any such inquiry subject to the omission from subsection (4) of the word “ local ”. 1972 c. 70.

15. Nothing in this Act shall affect prejudicially any estate, right, power, privilege, authority or exemption of the Crown and in particular and, without prejudice to the generality of the foregoing, nothing in this Act shall authorise the Authority to take, use, enter upon or in any manner interfere with any land or Crown rights.

hereditaments or any rights of whatsoever description (including any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary)—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners; or
- (b) belonging to a government department, or held in trust for Her Majesty for the purposes of a government department, without the consent in writing of that government department:

Provided that nothing in this section shall affect the application of section 8 (Use of open space for sewerage functions) of this Act to any such land to the extent of any interest therein for the time being held otherwise than by or on behalf of the Crown or a government department.

Repeals.

16.—(1) The statutory provisions specified in columns (1) and (2) of Schedule 2 to this Act (being provisions rendered unnecessary by this Act) are hereby repealed to the extent specified in column (3) of the said Schedule.

(2) All notices and demands given or made under any statutory provision repealed by this Act and in force immediately before the commencement of this Act shall continue in force in like manner and to the like extent as if this Act had not been passed.

SCHEDULES

SCHEDULE 1

Section 7.

PART I

MODIFICATIONS OF PROVISIONS OF THIRD SCHEDULE TO WATER
ACT 1945 APPLICABLE TO THE AUTHORITY

1945 c. 42.

Provisions (1)	Modifications (2)
Section 1 (Definitions, &c.) ...	In the definition of "communication pipe"— (a) after the words "the boundary of" in paragraph (b) there shall be inserted the words "the part of"; (b) after the word "stopcock" where it secondly occurs in paragraph (i) there shall be inserted the words "the box or pit in which it is enclosed and any cover thereto"; (c) at the end of paragraph (ii) there shall be added the words "and the box or pit in which the stopcock is enclosed and any cover thereto"; and (d) at the end of the definition there shall be inserted the words "but excludes any part of a service pipe provided for the purpose of affording a standby supply". In the definition of "service pipe", after the words "of any pipe" there shall be inserted the words "(including any ferrule or stopcock attached thereto)". At the end of the definition of "a supply of water for domestic purposes" there shall be inserted the words "and 'domestic purposes' shall be construed accordingly". In the definition of "supply pipe", after the words "of any service pipe" there shall be inserted the words "(including any ferrule or stopcock attached thereto)".

SCH. 1
—cont.

Provisions (1)	Modifications (2)
Section 3 (Limit on powers of undertakers to take water)	At the end of the section there shall be added the words “ or unless the works were authorised by, and the lands specified in, an enactment which applied to an undertaking transferred to the undertakers immediately before such undertaking was so transferred ”.
Section 12 (Map of underground works to be prepared and kept up to date)	In subsection (1), for the words “ six months ” where first occurring there shall be substituted the words “ two years ”.
Section 19 (Power to lay mains)...	For subsection (1)(b) there shall be substituted the following:— “ (b) in, on or over any land not forming part of a street, after giving reasonable notice to every owner and occupier of that land, and with the consent of— (i) the highway authority concerned, if the main will be laid within 220 feet of any highway; and (ii) the electricity or gas undertakers concerned, if the main will be laid in, on or over any land of those undertakers being operational land within the meaning of the Town and Country Planning Act 1971,”. In subsection (1), for the words “ laid down by them whether by virtue of this section or otherwise ” there shall be substituted the words “ forming part of the undertaking for the time being of the undertakers ”. At the end there shall be inserted the following:— “ (6) For the purposes of this section— (a) subject to subsection (5) of this section, the expression ‘ street ’ shall include land laid out for use as a street, being a street which is prospectively a maintainable highway within the meaning

Provisions (1)	Modifications (2)
Section 19 (Power to lay mains)— <i>cont.</i>	of the Public Utilities Street Works Act 1950; and 1950 c. 39. (b) the expression 'main' shall be deemed to include discharge and washout pipes, drains and signal cables."
Section 20 (Conditions as to laying mains outside limits of supply)	After subsection (3) there shall be inserted the following:— “(4) The foregoing provisions of this section shall not apply in any case where the undertakers are laying mains in a street forming the boundary of their limits of supply in exercise of the powers of section 43 of this Schedule.”
Section 21 (Power to lay service pipes, &c.)	At the end there shall be inserted the following:— “(3) In this section the expression ‘street’ shall include land laid out for use as a street.”
Section 30 (Right to demand supply for domestic purposes)	In subsection (1), for the proviso (as amended by section 11 of the Water Act 1948) there shall be substituted 1948 c. 22. the following:— “Provided that nothing in the special Act shall be construed as— (a) entitling any person to demand a supply of water from a trunk main; (b) requiring the undertakers to supply water for any premises in which any of the water fittings are not in accordance with the requirements of any byelaws made under section 17 of the Water Act 1945, or of any byelaws 1945 c. 42. or regulations made under any other enactment for purposes similar to those for which byelaws may be made under the said section 17, being byelaws or regulations applicable to those premises; and (c) entitling any person whose supply of water has been cut off to be reconnected before payment of any arrears due

SCH. 1
—cont.

Provisions (1)	Modifications (2)
Section 30 (Right to demand supply for domestic purposes)— <i>cont.</i>	has been made together with the expense incurred in cutting off and reconnecting the supply as estimated by the Director of Operations of, or other officer duly authorised in that behalf by, the undertakers."
Section 39 (Duty of undertakers as respects constant supply and pressure)	After subsection (1) there shall be inserted the following:— "(1A) Nothing in this section shall require water to be laid on under pressure to any house erected on land within the former limits of supply of the Durham County Water Board after 4th August 1922 at a higher level than 50 feet below the service reservoir from which a supply of water is furnished by the undertakers to such house."
Section 41 (Laying of communication pipes, &c.)	In subsection (1), for the proviso there shall be substituted the following:— "Provided that the undertakers may elect to lay a main in lieu of any part of a service pipe which is to be laid in a highway and in that case shall lay a communication pipe from that main and connect it with the supply pipe." In subsection (2), for the word "fourteen" there shall be substituted the word "twenty-one". For subsection (3) there shall be substituted the following:— "(3) The undertakers may make reasonable charges for executing the work which they are required or authorised by this section to execute and such charges shall be paid to them by the person by whom the notice was given and may be recovered from him summarily as a civil debt: Provided that if under the provisions of this section the undertakers lay a main in lieu of part of a service pipe the additional cost incurred of laying a

SCH. 1
—cont.

Provisions (1)	Modifications (2)
Section 41 (Laying of communication pipes, &c.)— <i>cont.</i>	main instead of that part of a service pipe shall be borne by them.”
	In subsection (4)— (a) for the word “fourteen” there shall be substituted the word “twenty-one”; and (b) for the word “expenses” in both places where it occurs there shall be substituted the word “charges”.
Section 43 (Power to break open streets forming boundary of limits of supply)	After the words “and removing” there shall be inserted the words “mains and”.
Section 45 (Provisions as to position, &c., of stopcocks)	At the end there shall be inserted the following:— “(3) Where any person has— (a) covered over any stopcock fitted on a service pipe or has otherwise obstructed the means of access to any such stopcock; (b) caused or permitted any such stopcock to be covered over or the access thereto to be obstructed; (c) covered over, damaged or removed any identification mark, plate, post or board installed by the undertakers for the location of any such stopcock or any support thereto; or (d) caused or permitted any such identification mark, plate, post or board or support to be covered over, damaged or removed, the undertakers may execute such work as they think necessary or expedient for uncovering the stopcock, or removing the obstruction or uncovering, repairing or replacing the identification mark, plate, post, board or support, and the undertakers may recover from that person summarily as a civil debt the expenses reasonably incurred by them in so doing: Provided that before executing such work in a case described in paragraph (a) or (b) of this sub-

SCH. 1
—cont.

Provisions (1)	Modifications (2)
Section 45 (Provisions as to position, &c., of stopcocks)— <i>cont.</i>	section the undertakers shall give such notice as is reasonable to that person and shall allow that person an opportunity to execute that work.”
Section 56 (Effect on water rates of alteration in valuation list)	For subsection (1) there shall be substituted the following which shall have effect in accordance with paragraph 53 of Schedule 8 to the Water Act 1973:— “ (1) An alteration made in the valuation list in the circumstances referred to in section 79 of the General Rate Act 1967 shall, for the purpose of calculating the amount due in respect of water rates, take effect from the same date as it takes effect for the purpose of that Act, and any necessary adjustments shall be made in the then current instalment of the water rate and any subsequent instalments thereof.”
Section 60 (Power to require provision of cisterns in certain cases)	For subsection (1) there shall be substituted the following:— “ (1) Where it is reasonable in all the circumstances for the purpose of enabling the undertakers to fulfil an obligation to afford a constant supply of water to any premises they may require that any house or building supplied by them shall be provided to the satisfaction of the undertakers with a cistern having a ball and stopcock fitted on the pipe conveying water to it.” In subsection (2)— (a) for the words “ his building ” there shall be substituted the words “ his house or building ”; and (b) for the words “ the building ” there shall be substituted the words “ the house or building ”.
Section 63 (Power to repair supply pipes)	At the end of subsection (1) there shall be inserted the following:— “ Provided that if the undertakers are reasonably satisfied that no person is in the premises and after diligent enquiry they are unable readily to gain entry for the purpose of taking action under this subsection, the undertakers may, as a preliminary to

1973 c. 37.

1967 c. 9.

Provisions (1)	Modifications (2)	SCH. 1 —cont.
Section 63 (Power to repair supply pipes)— <i>cont.</i>	such action and (except in case of emergency) after giving not less than 3 days' notice to the owner or occupier of the premises, turn off or cut off the water supplied by them to the premises and in such case, without prejudice to the foregoing provisions of this subsection, they shall restore the said supply at the request of the owner or any occupier." In subsection (2)— (a) for the word "several" there shall be substituted the words "two or more"; (b) the words "belonging to the owners or occupiers of the houses or buildings" shall be omitted; (c) for the words "from the owners of those premises" there shall be substituted the words "from the owners or occupiers of the houses or buildings supplied by the common supply pipe"; and (d) for the words "in case of dispute" to the end of the subsection there shall be substituted the words "shall be settled by the Director of Operations of, or other officer duly authorised in that behalf by, the undertakers".	
Section 64 (Penalty for waste, &c., of water by non-repair of water fittings)	The modifications specified in the Schedule to the Local Government (Miscellaneous Provisions) Act 1953 1953 c. 26. subject to the insertion at the end of the following:— "Provided that if the undertakers are reasonably satisfied that the premises are unoccupied and after diligent enquiry they are unable readily to communicate with the owner of the premises for the purpose of taking action under this subsection, the undertakers may, as a preliminary to such action and (except in case of emergency) after giving not less than 3 days' notice to the owner, turn off or cut off the water supplied by them to the premises and in such case, without prejudice to the foregoing provisions	

SCH. 1
—cont.

Provisions (1)	Modifications (2)
Section 64 (Penalty for waste, &c., of water by non-repair of water fittings)— <i>cont.</i>	of this subsection, they shall restore the said supply at the request of the owner or (if the premises become occupied) the occupier. (3) Where any premises are demolished or appear to be no longer likely to require a supply of water and the undertakers have reason to think that waste of water is occurring or is likely to occur they may, after giving notice to the owner and any occupier thereof, cut off the whole or any part of the supply pipe which lies in a highway, and may seal any pipe with which the same is connected, and the expenses reasonably incurred by them in so cutting off and sealing any part of the supply pipe shall be recoverable by them as expenses incurred under subsection (2) of this section: Provided that the undertakers shall not cut off any pipe to a house or other building in pursuance of this subsection if within 14 days of service of the said notice information is supplied to them from which it appears that a supply of water will again be required from it within 2 months or such longer period as is reasonable in the circumstances."
Section 94 (Copies of special Act to be kept by undertakers in their office, and deposited with certain officers)	In subsection (1), for the words from "the clerk" to the end there shall be substituted the words "the proper officer of the council of each county to which the order relates".

PART II

PROVISIONS APPLICABLE TO SUPPLY OF WATER BY AUTHORITY

SCH. 1
—cont.

Interpretation

1. In this Part of this Schedule expressions defined in section 59 of, or in section 1 of the Third Schedule to, the Water Act 1945 have the same meanings. 1945 c. 42.

Guarantees in respect of supplies for new buildings

2. (1) Section 37 of the Water Act 1945 (provision of domestic water supply for new buildings) shall, in its application to the Authority, have effect as if—

- (a) in paragraph (a) of the proviso to subsection (1), after the words “laying the necessary mains”, there were inserted the words “and providing and installing any necessary new pumping plant or making any necessary modification of any existing pumping plant”;
- (b) in paragraph (b) of the said proviso, after the words “laying the mains”, there were inserted the words “and providing and installing or modifying the pumping plant”;
- (c) the expression “service reservoirs” included water towers.

(2) Where in pursuance of the said section 37 the owner of any land requires the Authority to construct any works for the purpose of affording a supply to any new buildings which he proposes to erect, the Authority, instead of requiring the owner to give an undertaking to pay in respect of each year such sum as is provided in paragraph (a) of the proviso to section 37(1), may agree with him for the payment by him to the Authority of a sum in composition of any liability to make annual payments which he would incur if such an undertaking were given.

Supplies to premises in area of development

3.—(1) Where the Authority are required to lay mains or to construct any other works to bring water to any area for the purpose of affording a supply to any premises and the Authority construct service reservoirs, provide and lay mains or provide, install or modify pumping plant of or to greater capacity than may be necessary to bring to the area the quantity of water to be supplied to such premises, and within the period of 12 years from the completion thereof a requisition is made for a supply to any other premises, and it appears to the Authority to be desirable to use the works so provided or carried out, or any part thereof, for the purpose of affording such last-mentioned supply, the Authority may, before complying with such last-mentioned requisition—

- (a) in the case of a requisition made under section 29 of the Third Schedule to the Water Act 1945, require that for the purpose of determining the validity of the requisition there shall be brought into account the portion of the expense incurred by them in providing and carrying out so much of the works aforesaid as comprise mains or the part thereof (as the case may be) which would be used by the Authority to afford the supply to which the requisition relates, as if that portion of

SCH. 1
—*cont.*

1945 c. 42.

such expense would be incurred by the Authority in providing and laying mains necessary for compliance with the requisition; and

- (b) in the case of a requisition made under section 37 of the Water Act 1945, require the person making the requisition to undertake to pay in respect of each year a sum calculated in accordance with the proviso to section 37(1) in respect of the portion of the expense incurred by them in providing and carrying out so much of the works aforesaid or the part thereof (as the case may be) which would be used by the Authority to afford the supply to which the requisition relates, as if that portion of such expense would be incurred by the Authority in constructing service reservoirs, providing and laying mains and providing and installing or modifying pumping plant necessary for compliance with the requisition:

Provided that, if the person making the requisition so desires, the Authority may, instead of requiring the payment of an annual sum as aforesaid, agree with him for the payment by him to the Authority of such capital contribution as they may determine towards the cost incurred by the Authority in constructing, providing, installing or modifying the works aforesaid or the part thereof which would be used by the Authority to afford the supply to which the requisition relates.

(2) In this paragraph the expression “ service reservoirs ” includes water towers.

SCHEDULE 2

Section 16.

STATUTORY PROVISIONS REPEALED

Chapter and S.I. number (1)	Short title (2)	Extent of repeal (3)
S.I. 1957/303.	Tees Valley Water Order 1957.	Section 3 (The Third Schedule incorporated with local Acts).
6 & 7 Eliz. 2. c. xlv.	Tees Valley and Cleveland Water Act 1958.	Section 15 (Amendment of section 63 of Third Schedule to Water Act 1945).
S.I. 1959/1468.	Durham County Water Order 1959.	Section 3 (The Third Schedule incorporated with local Acts) and Schedules 2 and 3.
S.I. 1960/1688.	Tynemouth Water (No. 2) Order 1960.	In section 3 (Application of Third Schedule to undertaking), subsections (1) to (3) and Schedule 1.
S.I. 1970/1593.	Durham County Water Board and Sunderland and South Shields Water Order 1970.	Section 5 (Modification of Third Schedule).
S.I. 1971/1041.	Durham County Water Board Order 1971.	The whole Order.

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